

HOUSE No. 1555

The Commonwealth of Massachusetts

PRESENTED BY:

David K. Muradian, Jr.

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the display of the flag of the United States by condominium unit owners.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>David K. Muradian, Jr.</i>	<i>9th Worcester</i>	<i>1/16/2025</i>
<i>Joseph D. McKenna</i>	<i>18th Worcester</i>	<i>5/9/2025</i>
<i>Kelly W. Pease</i>	<i>4th Hampden</i>	<i>5/9/2025</i>

HOUSE No. 1555

By Representative Muradian of Grafton, a petition (accompanied by bill, House, No. 1555) of David K. Muradian, Jr., relative to the display of the flag of the United States by certain condominium owners. Housing.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1363 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the display of the flag of the United States by condominium unit owners.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 183A of the General Laws is hereby amended by adding the following section:-

2 Section 24. (a) For the purposes of this section, the term `flag of the United States' has the
3 meaning given the term `flag, standard, colors, or ensign' under section 3 of title 4 of the United
4 States Code.

5 (b) No corporation, trust or unincorporated association provided for in the master deed
6 for the management and regulation of a condominium shall prohibit a unit owner from: (i) flying
7 or displaying the flag of the United States on a flagpole, base or stand affixed to the unit in a
8 limited common area where the unit owner has a right of exclusive possession or use; or from (ii)
9 displaying an official flag of the United States Armed Forces or a Prisoner of War/Missing in

10 Action flag in a window of the unit; provided, that any such flag shall be no larger than 4.5 feet
11 by 6 feet in size; provided, further, that the display or use is not inconsistent with any provision
12 of chapter 1 of title 4 of the United States Code, or any rule or custom pertaining to the proper
13 display or use of the flag of the United States; and provided, further, that such flag does not
14 obstruct the sightlines of other unit owners and is not erected within or upon an easement
15 restricting or prohibiting such erection and display of the flag.

16 (c) No corporation, trust or unincorporated association provided for in the master deed for
17 the management and regulation of a condominium shall enter into an agreement with a unit
18 owner that would restrict or impair their right to display the flag of the United States or of the
19 United States Armed Forces, or Prisoner of War/Missing in Action pursuant to this section.